

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3386 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Amanda Clinton

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3386

By: Clinton of the House

and

Kirt of the Senate

FLOOR SUBSTITUTE

An Act relating to evictions; amending 12 O.S. 2021, Section 1148.6, which relates to answer by a defendant in forcible entry and detainer actions; allowing defendants to request mediation prior to a forcible entry and detainer hearing or trial if minor children reside at the rental property; requiring mediation if a mediator is present; requiring certain proof of residency; providing that a court may render a judgment if mediation is unavailable or unsuccessful; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is amended to read as follows:

Section 1148.6. A. In all cases in which the defendant wishes to assert title to the land or that the boundaries of the land are in dispute, he or she shall, before the time for the trial of the

1 cause, file a verified answer or an affidavit which contains a full
2 and specific statement of the facts constituting his or her defense
3 of title or boundary dispute. If the defendant files such a
4 verified answer or affidavit, the action shall proceed as one in
5 ejectment before the proper division of the district court. If the
6 defendant files an affidavit he or she shall file answer within ten
7 (10) days after the date the affidavit is filed.

8 B. In all cases in which the cause of action is based on an
9 asserted breach of a lease by the defendant, or the termination or
10 expiration of a lease under which the defendant claims an interest
11 in the property in a verified answer or affidavit, the plaintiff may
12 proceed with the forcible entry and detainer action instead of an
13 ejectment action.

14 C. In all forcible entry and detainer cases where there are
15 minor children residing at the rental property, a defendant may
16 request the court order mediation between the parties prior to a
17 hearing or trial if a mediator is present that day. To substantiate
18 this request, the defendant shall attach proof of residency for said
19 minor children, including, but not limited to, school records or
20 shot records. This provision shall not be construed to extend or
21 delay a hearing or a trial. Should mediation be unsuccessful or
22 unavailable, the court may proceed to render a judgment in
23 accordance with applicable law.
24

1 D. No answer by the defendant shall be required before the time
2 for trial of the cause.

3 SECTION 2. This act shall become effective November 1, 2026.
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